How East Detroit Is Governed

Reading 2 of 4: Authority, independent agencies and the real models behind them

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Nothing here is adopted. The platform, vendor, governance board and first service are all OPEN.

The setting

East Detroit is a fictional city-county of 382,417 residents in twenty provisional neighborhoods. Many organizations residents use are independent of it. Growth brings new parcels, crowded schools, costly housing, long commutes, income gaps, and demand for water, safety, recreation, permits and benefits.

Who holds authority

City-county departments must take part in the spec. Every other public body can join, join on its own terms, or refuse.

Table 1. Starting authority of each participant (SCENARIO)

Organization	Starting status	What this means in the exercise
City-county departments: planning, address and GIS, clerk, public health, the City Housing Division, human services, parks, police and 911, fire, finance, technology	Internal; must take part	Own mandates and capacity; can contest policy, financing, sequence, feasibility, methods
Elected municipal and county leaders	Internal governing authority	Set decision rights, appropriations, accountability, conflict resolution
State of Colorado agencies	External; control their own programs	Set program rules; city cannot rewrite federal or state eligibility
East Detroit Regional Housing Authority (EDRHA)	External; own board, regional constituency	Own housing assistance, properties and records access
East Detroit Public Library District	External; own board and tax levy	Libraries, public computers, in-person help; decides whether to be a city-service help point
East Detroit County Court	External; city-county funds it, judges independent	Controls its case records

Organization	Starting status	What this means in the exercise
East Detroit Health and Hospital Authority	External; board appointed by the mayor	Public safety-net hospital; patient records under medical privacy law
East Detroit Health System	External	Level I trauma and teaching hospital; same privacy law
Independent school districts and boards	External; separately governed	Agreement needed for shared data, enrollment and school transportation
RTD and any special transit authority	External	Service and fares by negotiation; a scenario rail station is not a data-sharing agreement
East Detroit Water and Sewer Authority and any special districts	External, unless the class lawfully absorbs them	Own capital, water rights, rates, boundaries, service obligations
Denver International Airport, KCFO operators, the FAA, surrounding cities and counties	External	Airport safety, routes, land ownership and boundaries limit city plans
Residents, community organizations, workers, firms and vendors	Participants	Can push, apply, sell or object; no public authority

What the city-county can require

The city-county directs its own departments through charter, ordinances, administrative orders and budgets. It cannot control statewide eligibility rules, federal programs, independent school boards, private records, RTD, nearby municipalities or separate authorities.

- Internal departments must show up, make a proposal and account for carrying it out.
- External parties may decline and state their terms.
- If a department refuses to promise something unlawful or unfunded, record the issue and who can resolve it.
- Keep program appeals and legal review separate from technical administration.

Colorado: the legal setting

Colorado law governs East Detroit. Where real law would need state action, write “fictional enabling rule needed.”

Consolidated city and county

Broomfield, a real Colorado city, became a county by state constitutional amendment. A similar fictional measure created East Detroit but set no board, software platform, elected structure or service priority. Consolidation cuts handoffs; it cannot override external authorities.

County-administered benefits

Colorado human services are state-supervised and county-administered. East Detroit delivers programs such as food assistance under state and federal rules on policy, appeals, privacy and system access.

Intergovernmental cooperation

Colorado's constitution lets governments cooperate and contract to provide functions each may legally provide, but not to take an independent agency's information without consent.

A city-county court

Each Colorado county normally has a state-funded county court for smaller matters: evictions, small claims, civil cases up to $25,000, misdemeanors, traffic and protection orders. A state district court hears larger cases. Denver is the exception. Denver, not the state, funds its county court, and Denver appoints its judges (Colorado Constitution, Article VI, §26).

SCENARIO: A fictional enabling rule in the founding amendment gives East Detroit a Denver-model county court, which no other Colorado county has. Felonies, family and probate cases go to a state district court. Independent judges and records make it an outside agency.

A public hospital authority

In 1997, Denver's public hospital left city government and became the Denver Health and Hospital Authority. Under Colorado law it is a political subdivision that is not an agency of the state or the city. The mayor appoints its eleven-member board, subject to city council confirmation.

SCENARIO: The East Detroit Health and Hospital Authority follows this model, separate from the East Detroit Health System.

A library district

SCENARIO: The East Detroit Public Library District is independent of the city. The Boulder Public Library District (Table 2) is a real Colorado example.

The Denver airport precedent

Denver International Airport sits on former Adams County land, annexed under legal authorization, elections and agreements that also governed later economic deals. Near another jurisdiction's facility, East Detroit faces the same questions: who pays, owns the land, collects revenue and approves new uses.

Michigan: comparisons, not law

A Michigan arrangement applies only if the class adopts it and shows how Colorado law or the fictional enabling measure allows it.

Charter-county functions

Michigan's Charter Counties Act lets a charter county take on public health, police, fire, welfare, land use, recreation and utilities, and take some city functions by agreement. You could adopt a similar fictional clause, with consent where law requires it.

Detroit's water arrangement

The Great Lakes Water Authority (GLWA) leases and operates Detroit's regional water and sewer facilities, while the Detroit Water and Sewerage Department owns the local system and serves customers. That split is one model for East Detroit's Water and Sewer Authority; any arrangement is OPEN.

Neighborhood technology stewards

Detroit's Equitable Internet Initiative gave residents paid roles as trained Digital Stewards maintaining community-run networks.

You may propose a mixed board, elected commission, neighborhood council, contracted regional operator or internal city department if your decision record says who holds each decision right and where that power comes from.

Other institutional models

Table 2. Institutional models for comparison

Example (REAL REFERENCE)	How it works	East Detroit choice to debate (OPEN)
Colorado SIPA	Public authority oversees procurement and a contracted portal integrator	Central purchasing, vendor oversight, fees and political accountability
UTOPIA Fiber, Utah	Cities own a shared network; other providers serve customers on it	Whether a shared public asset can support competing services
KOMBIT, Denmark	Municipalities share procurement and product management	Population-based funding, portfolio priorities and the right to exit
X-tee, Estonia	Agencies exchange signed, authenticated, logged messages under agreements	Exchange for an approved purpose vs. shared records vs. a credential the resident holds

Example (REAL REFERENCE)	How it works	East Detroit choice to debate (OPEN)
Athumi, Flanders	A public data company with a defined mandate and oversight	Whether to create a separate data-exchange operator, and its powers
Boulder Public Library District	Local governments help select the board; the district governs itself	How to involve independent cultural or educational bodies
Detroit and GLWA	Public ownership with separate operation	Who owns assets, who operates, who answers to residents
Detroit Digital Stewards	Residents train for and help maintain local networks	How neighborhoods gain practical power and paid roles
LinkNYC, New York City	Public franchise; private operator bound by financial and privacy duties	Who can finance, audit, replace and shut down a contractor

These are precedents, not requirements. Check current terms before citing one.

Housing

The City Housing Division (EDHD) is a city-county department; the independent EDRHA also serves nearby participating communities. The pair mirrors Detroit's housing department and independent housing commission, and Portland's housing bureau and Home Forward. A local rent-relief grant and a federal housing voucher are separate obligations, so some overlap is not waste. Reading 3 covers both; any EDHD-EDRHA agreement is OPEN.

Rules for using these models

1. **Colorado fact.** Start from real Colorado responsibilities and the fictional city-county's valid powers.
2. **Michigan precedent.** Say what the comparison arrangement does and why it might work better.
3. **Fictional enabling change.** If Colorado can't simply adopt an arrangement, write the authorizing clause or state partnership into the simulation. A student vote does not amend real Colorado law.
4. **Conflicts.** Record the options, the right or interest affected, who can settle it and any outside party that must consent. Pick a rule and say why. The "better" state's rule does not win automatically.
5. **Independent parties.** They can refuse; a city-county resolution is not their consent.
6. **Federal and state program boundaries.** City policy can't get around them. Label any fictional waiver or pilot as fictional and have the right simulated authority approve it.

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